

Respond to:

Kalman Hartig (in propria persona)
"Without Prejudice"
% 900 9th Ave East; Lot 100
Palmetto, Florida [34221]
Non-Domestic

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT, (a private corporation for
profit)
IN AND FOR MANATEE COUNTY (a private corporation for profit)

COLONIAL MANOR MHC HOLDINGS, LLC,	)	
	)	Cause Number: 2024-CC-2691 AX
Plaintiff,	)	
	)	<u>MOTION FOR CONTINUANCE and</u>
		<u>OBJECTION TO PLAINTIFF'S FILING</u>
		<u>OF AUGUST 6,2025</u>
vs	)	
	)	
KALMAN HARTIG	)	
	)	
Defendant.	)	

COMES NOW Kalman of the family Hartig, a live breathing man on the land and soil, am here by special divine appearance, to settle this matter, to call for a constitutional court of record, to ask for a MOTION FOR CONTINUANCE AND OBJECTION TO PLAINTIFF'S FILING OF AUGUST 6,2025 FOR FINAL JUDGMENT AND JUDICIAL SALE based on the true facts placed on the record by my documents.

1. The Defendant herein moves this Court to grant a MOTION FOR CONTINUANCE based on the following facts:

- A) Plaintiff's MOTION FOR FINAL JUDGMENT FOR DAMAGES AND JUDICIAL SALE raises numerous issues that Defendant needs to explore further.

- B) Plaintiffs document raises very interesting legal concepts and arguments regarding possession, ownership and related liability.
- C) Defendant needs to explore issues raised in B) in more detail, which also brings Jurisdiction of this Court and its actions into question as well. Defendant's appearance in this Court is not based on **pro se**, but **in propria persona**.
- D) Defendant needs to review and explore in more detail the FLORIDA STATUTES Plaintiff is basing this filing on.
- E) Defendant needs to explore and review customary legal fees and charges as they appear to be excessive. One obvious reason for the excessiveness is the amount of time spent on this unnecessary and completely contrived action. Plaintiff billed many hours based on what? **There was absolutely no need for this action.** (see G for more detail)
- F) As mentioned in B) above it also raises the question of the validity of the AFFIDAVIT OF INDEBTEDNESS by Park Manager of Colonial Manor, as there is no breakdown of charges and costs that were supposedly incurred. Details regarding past due rent, late fees, water and sewer fees, and repair of utilities are in need of clarification. Also in point # 16 Plaintiff lists unspecified maintenance expenses? Defendant doesn't know anything about any of these charges and would like a more detailed breakdown of the same.
- G) Defendant feels the entire proceedings are highly questionable as he already enumerated in his filing for SUMMARY JUDGMENT several months ago. Defendant was **never late with rent payments** the entire four years of his residency. **Unlike most eviction proceedings this action had nothing to do with money or rent.** The Plaintiff never had a case to begin with, as Defendant complied with Plaintiff's demands.

Plaintiff was overly eager to evict Defendant by all means possible and without cause or reason. That obviously leaves only one reason for this action: **vicious, malicious, vindictive, selective prosecution and unjustifiable persecution**. Defendant speculates this action was in **retaliation** of legal action taken against the Park's owners several years ago. Defendant was President of the **Home Owners Association** of Colonial Mobile Manor at the time the action was taken.

H) In Point Number 8 Plaintiff asserts that the Mobile Home continued to be used as storage inside and outside, creating an ongoing health hazard to the community!?? What does Plaintiff expect when the person cleaning up and moving out (Defendant) is removed from the premises!?? **Plaintiff's eagerness to get rid of Defendant prevented him of completing his cleanup**. Furthermore, by not allowing Defendant to work on the originally proposed stipulation deadline of December 31, 2025 to voluntarily remove himself from the Park, **Plaintiff deprived Defendant not only of the opportunity to remove everything from the premises, but also deprived Defendant of his possessions!** Defendant knew the amount of time it would take to clear the premises and get them ready for sale. Plaintiff had no interest in this deadline and was only too eager to get rid of him. **Consequently, Plaintiff created this "storage problem"**. Defendant is left with only one possible explanation for this entire action: It is solely based on retaliation, vindictiveness, and over-eagerness to deprive Defendant of his property and possessions.

In summary, Defendant needs additional time to explore and research some of the issues raised by Plaintiff's filing.

CERTIFICATE OF SERVICE

Dated this 7th day of September, 2025 and electronically filed and served through the Florida e-filing portal to all parties concerned.

Submitted

By Kalman Hartig

Kalman Hartig Jr. (in propria persona)